



File No.: EXP202304240

RESOLUTION OF RIGHTS PROCEDURE

Following the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: On February 21, 2022, Mr. A.A.A. (hereinafter, the complainant) sent an email to FREE TECHNOLOGIES EXCOM, S.L. (hereinafter, the respondent) requesting the deletion of his data. On January 29, 2023, he sent another email to the respondent again requesting the deletion of his data. On January 30, 2023, the respondent replied indicating that "For security reasons, it is not possible to request a cancellation via email. In order to inform you on how to request the cancellation, it is necessary for the account holder to call ***TELEPHONE.1 (...)" The complainant has provided copies of all emails, as well as a copy of a resolution from the Secretary of State for Telecommunications and Digital Infrastructures dated November 8, 2021, against the respondent, which upholds the complaint filed "(...) recognizing the complainant's right to obtain effective cancellation of the contracted services, and the operator must annul, if it has not already done so, the charges billed after two days from the date on which the cancellation was requested."

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the aforementioned complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations, without any written response being recorded.

THIRD: The result of the transfer procedure indicated in the previous Fact did not allow for the complainant's claims to be considered satisfied. Consequently, on May 13, 2023, for the purposes provided for in Article 64.1 of the LOPDGDD, the Director of the Spanish Agency for the Protection of Data agreed to admit the complaint for processing. The aforementioned agreement granted the respondent a hearing period, to present any arguments it deemed appropriate within ten working days, arguing, in summary, that the complainant had an active contract with the respondent (domestic internet access service via radio frequency), providing a copy of it as Annex 1.

"(...) - that on 07/23/2021, the request for cancellation of the contract was received (...) (see Annex 2)

- That on 11/16/2021, Mr. A.A.A. was informed that the service would be canceled effective 01/08/2021, as well as the different ways to return equipment and the deadline for returning the same. (see Annex 3)

- That on that same day, the invoices were rectified (...) by means of a credit invoice (...) (see Annex 4)

- That considering Mr. A.A.A.'s situation, an agreement was reached, and the collection of the equipment was carried out at no cost on 12/23/2021. (see Annex 5)

- That on 01/31/2023, the invoice (...) pending payment for the penalty for non-return of equipment was rectified by means of a credit invoice (...) (see Annex 6)

- That, in addition, as requested by Mr. A.A.A., we have proceeded to delete his data related to commercial information. For all these reasons, on June 21, 2023, Excom reiterates that the complaint filed by Mr. A.A.A. is valid and that all requirements of the resolution received on 11/08/2021 from the Secretary of State for Telecommunications and Digital Infrastructures were met in a timely manner "(...)" The respondent has provided copies of various documents as Annexes 2 to 6.

FOURTH: After examining the document submitted by the respondent, it is forwarded to the complainant, so that, within ten working days, he may formulate any allegations he considers appropriate, stating, in summary, that he reiterates the facts presented in his complaint.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.1 of the LOPDGDD, the Director of the Spanish Agency for the Protection of Data is competent to initiate and resolve this procedure.

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Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, to the extent that they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Issues

In accordance with the provisions of Article 55 of the GDPR, the Spanish Agency for Data Protection is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and promoting awareness among data controllers and processors regarding their obligations, as well as addressing complaints submitted by a data subject and investigating, as appropriate, the reasons for such complaints.

Correspondingly, Article 31 of the GDPR establishes the obligation of data controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In cases where they have designated a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with said authority.

In accordance with this regulation, following the procedure established in Article 65.4 of the LOPDGDD, prior to the admission of the complaint regarding the exercise of the rights regulated in Articles 15 to 22 of the GDPR, which gives rise to this procedure, the complaint was forwarded to the respondent party for analysis, requiring a response to this Agency within one month and proof of having provided the complainant with the appropriate response.

The result of this forwarding did not satisfy the claims of the complainant. Consequently, on May 13, 2023, for the purposes provided in Articles 64.1 and 65 of the LOPDGDD, the complaint was admitted for processing. This admission initiates the present procedure regarding the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, which states:

"When the procedure refers exclusively to the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, it shall be initiated by an admission agreement, which shall be adopted in accordance with the provisions of Article 65 of this organic law.

In this case, the deadline for resolving the procedure shall be six months from the date on which the admission agreement was notified to the complainant. After this period, the interested party may consider their complaint to be upheld."

Article 58.2 of the GDPR grants the Spanish Agency for Data Protection a series of corrective powers to address any infringement of the GDPR, including "ordering the data controller or processor to address the requests for the exercise of the rights of the data subject under this Regulation."

III

Rights of Individuals Regarding Personal Data Protection

The rights of individuals regarding personal data protection are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. These include the rights of access, rectification, erasure, objection, the right to restriction of processing, and the right to data portability.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, consideration is given to the provisions expressed in Recitals 59 and following of the GDPR.

In accordance with these regulations, the data controller must establish means and mechanisms to facilitate the exercise of rights by the data subject, which shall be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless it can demonstrate that it is unable to identify the data subject, and must

state its reasons if it does not intend to comply with such a request. The burden of proof regarding compliance with the duty to respond to the request for the exercise of rights made by the affected party lies with the data controller.

The communication addressed to the data subject regarding their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language.

IV

Right to Erasure

Article 17 of the GDPR, which regulates the right to erasure of personal data, establishes the following:

"1. The data subject shall have the right to obtain from the data controller the erasure of personal data concerning them without undue delay, and the data controller shall be obliged to erase personal data without undue delay when one of the following grounds applies:

- a) the personal data are no longer necessary in relation to the purposes for which they were collected or otherwise processed;
- b) the data subject withdraws consent on which the processing is based according to Article 6(1)(a) or Article 9(2)(a), and where there is no other legal ground for the processing;
- c) the data subject objects to the processing pursuant to Article 21(1), and there are no overriding legitimate grounds for the processing, or the data subject objects to the processing pursuant to Article 21(2);
- d) the personal data have been unlawfully processed;

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e) personal data must be deleted to comply with a legal obligation established in Union or Member State law applicable to the data controller;

f) personal data has been obtained in relation to the offering of information society services mentioned in Article 8, paragraph 1.

2. When the data controller has made personal data public and is obliged, under the provisions of paragraph 1, to delete such data, the data controller, taking into account the available technology and the cost of its implementation, shall adopt reasonable measures, including technical measures, to inform controllers processing the personal data of the data subject's request for deletion of any link to such personal data, or any copy or replica thereof.

3. Paragraphs 1 and 2 shall not apply when processing is necessary:

- a) to exercise the right to freedom of expression and information;
- b) to comply with a legal obligation requiring processing of data imposed by Union or Member State law applicable to the data controller, or to perform a task carried out in the public interest or in the exercise of official authority vested in the controller;
- c) for reasons of public interest in the area of public health in accordance with Article 9, paragraph 2, letters h) and i), and paragraph 3;
- d) for archiving purposes in the public interest, scientific or historical research purposes, or statistical purposes, in accordance with Article 89, paragraph 1, to the extent that the right referred to in paragraph 1 could make it impossible or seriously impede the achievement of the objectives of that processing, or
- e) for the establishment, exercise, or defense of legal claims."

V

Conclusion

In this case, from the examination of the documentation provided, and as far as this procedure is concerned, it has been established that the claimant requested the deletion of their personal data.

The entity being complained about has responded to this Agency indicating that it has proceeded to comply with the right, but does not prove to have expressly responded by sending the required response to the request.

Thus, it cannot be accepted that the response that should be given can be manifested merely as part

of an administrative procedure, such as the submission of allegations in the context of this procedure, initiated precisely for not properly addressing the request in question.

The aforementioned rules do not allow the request to be overlooked as if it had not been made, leaving it without the response that must be issued by the controllers, even in the event that there are no data in the files or even in those cases where the requirements set forth are not met, in which case the recipient of such a request is also obliged to require the rectification of

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the deficiencies observed or, if applicable, deny the request with justification indicating the reasons why the right in question cannot be considered.

Therefore, the request made obliges the responsible party to provide an express response in all cases, using any means that justifies the receipt of the response.

Given that a copy of the necessary communication that must be sent to the claimant informing them of the decision made regarding the exercise of rights request is not attached, it is appropriate to uphold the claim that initiated this procedure.

In view of the cited provisions and other generally applicable regulations, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO UPHOLD the claim made by Mr. A.A.A. considering that the provisions of Article 17 of the GDPR have been infringed and to urge FREE TECHNOLOGIES EXCOM, S.L. with NIF B82999798, to send to the claimant, within ten working days following the notification of this resolution, a certification addressing the requested right or denying it with justification indicating the reasons why the request cannot be attended to, in accordance with the provisions established in the body of this resolution. The actions taken as a result of this Resolution must be communicated to this Agency within the same period. Non-compliance with this resolution could result in the commission of an infringement of Article 83.6 of the GDPR, classified as very serious for the purposes of prescription in Article 72.1.m) of the LOPDGDD, which will be sanctioned in accordance with Article 58.2 of the GDPR.

SECOND: NOTIFY this resolution to Mr. A.A.A. and to FREE TECHNOLOGIES EXCOM, S.L.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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